

HOUSE No. 3471

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring disclosure to consumers regarding home heating oil insurance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 3471

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 3471) of Michael S. Day that retailers of home heating oil provide notices to customers of the availability of liability insurance coverage for certain claims arising out of releases of oil into the environment. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3686 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring disclosure to consumers regarding home heating oil insurance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 38J of chapter 148 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding after subsection (e) the following new
3 subsections:

4 (f) Each retailer of home heating oil shall annually provide to each home heating oil
5 customer a notice on a form prescribed or approved by the board of fire prevention regulations
6 advising such customer of the availability of additional insurance for first-party property
7 coverage for response action costs and for additional liability coverage for third-party claims
8 arising out of a release of heating oil into the environment, as required pursuant to section 4D of
9 chapter 175 of the General Laws.

SECTION 2. This act shall take effect on passage.